

25CV01572 Arthur M Rodriguez et al vs General Motors LLC

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-07-20

Motion: Motion re Compliance Pursuant to CCP 871.26 and Request for Sanctions

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Tentative Ruling: Arthur M Rodriguez et al vs General Motors LLC

Case Number

25CV01572

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 07/20/2026 - 10:00

Nature of Proceedings

Motion re Compliance Pursuant to CCP 871.26 and Request for Sanctions

Tentative Ruling

Arthur M. Rodriguez, et al. v. General Motors, LLC

Case No. 25CV01572

Hearing Date: July 20, 2026

HEARING: Defendant's Motion For Compliance Pursuant To Code of Civil Procedure Section 871.26, And Request For Sanctions

ATTORNEYS: For Plaintiffs Arthur M. Rodriguez and Cesar Diaz: Larry Chase, Tyson Smith, Strategic Legal Practices, A Professional Corporation

For Defendant General Motors, LLC: Michael D. Mortenson, Craig A. Taggart, Kristen J. Allison, Mortenson Taggart Adams LLP

TENTATIVE RULING:

The motion of defendant for compliance pursuant to Code of Civil Procedure section 871.26 is granted, in part. Plaintiffs Arthur M. Rodriguez and Cesar Diaz are each ordered to appear for an initial deposition on July 7, 2026, each not to exceed two hours. The court reserves ruling on defendant's request for an award of monetary sanctions, and continues the motion to August 17, 2026, as to that request. On or before July 31, 2026, the parties shall file a joint report or, if necessary, file and serve individual reports setting forth the status of the initial depositions of plaintiffs ordered herein.

Background:

The first amended complaint (FAC) filed on September 22, 2025, by plaintiffs Arthur M. Rodriguez (Rodriguez) and Cesar Diaz (Diaz) (collectively, Plaintiffs) against defendant General Motors, LLC (GM), is the operative pleading. In the FAC, Plaintiffs allege that on April 4, 2022, they entered into a warranty contract with GM regarding a 2022 Buick Encore (the Vehicle). (FAC, ¶ 6.) The Vehicle was manufactured and distributed by GM, and purchased in Oxnard from GM's authorized dealer. (Ibid.)

Plaintiffs further allege that defects and nonconformities to warranty manifested within the applicable express warranty period, including engine defects, transmission defects, and electrical defects. (FAC, ¶ 11.) GM knew of the defects but concealed them from Plaintiffs, inducing Plaintiffs into purchasing the Vehicle. (FAC, ¶¶ 45-74.) GM failed to promptly replace the Vehicle or to make restitution. (FAC, ¶ 15.)

The FAC asserts five causes of action against GM: (1) violation of Civil Code section 1793.2, subdivision (d); (2) violation of Civil Code section 1793.2, subdivision (b); (3) violation of Civil Code section 1793.2, subdivision (a)(3); (4) breach of the implied warranty of merchantability; and (5) fraudulent inducement – concealment.

On February 17, 2026, GM filed an answer to the FAC generally denying its allegations and asserting twenty-six affirmative defenses.

On February 24, GM filed a motion for an order requiring Plaintiffs to appear and comply with an initial deposition under Code of Civil Procedure section 871.26, subdivision (c). That motion includes a request for an award of monetary sanctions against Plaintiffs' counsel of record, Strategic Legal Practices, APC, in the sum of \$1,500.

In support of the motion, GM's counsel, Kaitlyn Lasater (attorney Lasater), states that on July 7, 2025, GM served Plaintiffs with a meet-and-confer letter asserting that this matter is subject to the provisions of Code of Civil Procedure section 871.20 et seq., and that GM was issuing a notice for Plaintiffs to appear for a deposition. (Lasater Dec., ¶¶ 3-4 & exhibit A.) That letter further stated that if Plaintiffs were "unavailable to appear at the depositions as noticed, please contact our office with a date to complete the deposition[]", and that "[t]hese depositions are to be completed no later than 120 days after the filing of the answer or responsive pleading. See Code of Civil Procedure section 871.26(c)." (Lasater Dec., ¶ 4 & exhibit A, original punctuation and italics.) Attached to the letter were notices (the Deposition Notices) for Plaintiffs to appear for their deposition on August 18, 2025. (Lasater Dec., ¶ 5 & exhibits B-1, B-2.)

Plaintiffs objected to the Deposition Notices on August 15, 2025, on the grounds that the depositions were unilaterally noticed by GM for a date and time on which Plaintiffs or their counsel were not available, and asserted that Plaintiffs would meet and

confer with GM to reschedule the depositions for a mutually convenient date and time. (Lasater Dec., ¶ 6 & exhibits C-1, C-2.)

On January 8, 2026, Plaintiffs offered February 26, 2026, as an available date for the deposition, which GM confirmed. (Lasater Dec., ¶ 7 & exhibit D.) On January 14, after Plaintiffs confirmed that they were available for a deposition on that date, GM served amended notices (the Amended Notices) for Plaintiffs to appear for deposition on February 26, 2026. (Lasater Dec., ¶¶ 8-9 & exhibits E, F-1, & F-2.)

On February 12, 2026, Plaintiffs' counsel cancelled the depositions. (Lasater Dec., ¶ 11 & exhibit H.) On February 19, Plaintiffs objected to the Amended Notices indicating that "[d]ue to scheduling conflicts, Plaintiff and Plaintiff's Counsel are no longer available for the noticed date." (Lasater Dec., ¶ 10 & exhibits G-1 & G-2.) The objection further stated that Plaintiffs would not be produced for deposition on the noticed date but that "[p]arties are meeting and conferring to reschedule the deposition on a date and time that is mutually convenient." (Lasater Dec., ¶ 10.)

Attorney Lasater asserts that the statutory deadline to conduct the deposition of Plaintiffs was November 4, 2025; that GM has not received any correspondence with dates for deposition other than the scheduled and then cancelled date of February 26, 2026; and that without Plaintiffs' deposition, GM is unable to adequately prepare for the mandated mediation that is to occur 150 days after GM filed its responsive pleading under Code of Civil Procedure section 871.26, subdivisions (c) and (d). (Lasater Dec., ¶¶ 12-13.)

On May 11, GM filed a supplemental declaration of its counsel, Genesis S. Gonzalez (attorney Gonzalez), stating that on March 19, 2026, GM served Plaintiffs with second amended deposition notices (the Second Amended Notices) for a previously agreed upon date of May 12, 2026, and that on May 7, Plaintiffs served objections to the Second Amended Notices claiming that Plaintiffs will be produced for deposition at the date, time, and location set forth in those notices. (Gonzalez Dec., ¶¶ 3-4 & exhibits D, E.) On May 11, Plaintiffs' counsel stated that those depositions would need to be rescheduled. (Gonzalez Dec., ¶¶ 5-6 & exhibits F, G.)

In support of their opposition to the motion, Plaintiffs' counsel, Jana Perks (attorney Perks), asserts that Code of Civil Procedure section 871.26, subdivision (c), does not give the parties the right to notice or seek depositions within 120 days, but instead requires GM to "conduct" the deposition no later than November 4, 2025. (Perks Dec., ¶¶ 9-10.) Attorney Perks further states that Plaintiffs were willing to be deposed; did not indicate that they were unwilling to be deposed; and that the depositions of Plaintiffs are presently scheduled for July 7, 2026. (Perks Dec., ¶ 11.)

In support of GM's reply to Plaintiffs' opposition, attorney Lasater states that on May 18, Plaintiffs offered July 7, 2026, as the next available deposition date. (Lasater Dec., ¶ 2.)

Analysis:

Code of Civil Procedure section 871.26 "only applies to a civil action seeking restitution or replacement of a motor vehicle pursuant to [s]ection 871.20." (Code Civ. Proc., § 871.26, subd. (a).) "In addition to the requirements prescribed by subdivision (a), [Code of Civil Procedure] section [871.26] only applies to a civil action filed on or after January 1, 2025." (Code Civ. Proc., § 871.26, subd. (l).) The parties do not appear to dispute that Code of Civil Procedure section 871.26 applies to this action.

Section 871.26 states: "Within 120 days after the filing of the answer or other responsive pleading, all parties have the right to conduct initial depositions, each not to exceed two hours, of the following deponents: [¶] [t]he plaintiff" (Code Civ. Proc., § 871.26, subd. (c)(1).) Relevant here, the statute further states that "[u]nless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions" in the amount of \$1,500 "against the plaintiff's attorney ..., paid within 15 business days for failure to comply with the provisions relating to depositions as prescribed in subdivision (c)." (Code Civ. Proc., § 871.26, subd. (j)(2).)

For all reasons discussed above, GM had a statutory right to conduct initial depositions of Plaintiffs within 120 days after GM filed its answer on February 17, 2026. The opposition of Plaintiffs to the motion presents no reasoned factual or legal argument showing why the initial depositions of Plaintiffs were not duly noticed by GM. Plaintiffs also do not dispute that they did not appear for their duly noticed depositions within the time prescribed in Code of Civil Procedure section 871.26, subdivision (c). For these and all further reasons discussed above, the present record is sufficient to show that Plaintiffs have failed to comply with Code of Civil Procedure section 871.26.

The court has also reviewed Plaintiffs' objections and the record of correspondence between the parties regarding the initial depositions of Plaintiffs. Apart from generally asserting Plaintiffs' unavailability or scheduling conflicts, that record includes no factual information showing why Plaintiffs were unable to attend their initial depositions on the dates noticed by GM. (See, e.g., Lasater Dec., exhibits C-1, C-2, D, G-1, G-2, & H; Gonzalez Dec., exhibit F; Perks Dec., exhibit 7.) The court is also not persuaded by the arguments advanced in Plaintiffs' opposition in regard to whether GM is barred from taking Plaintiffs' deposition outside of the statutory deadline, whether GM has waived any right to take Plaintiffs' deposition under Code of Civil Procedure section 871.26, or whether GM acted in bad faith or delayed seeking relief.

Under the totality of the circumstances present here where the parties do not dispute that the initial depositions of Plaintiffs will proceed on the ostensibly mutually agreed upon date of July 7, 2026, and for all reasons discussed above, the court will grant the motion, in part, and order Plaintiffs to each appear for an initial deposition on that date. For the reasons discussed above, the initial depositions ordered herein shall not exceed two hours for Diaz and two hours for Rodriguez.

Though Plaintiffs assert, in a general and conclusory fashion, that Plaintiffs have cooperated with GM, have not attempted to evade their initial depositions, and have engaged in a meet and confer process to facilitate discovery, Plaintiffs fails to present in their opposition any information, evidence, or reasoned argument showing why there exists good cause for Plaintiffs' failure to comply with the provisions relating to depositions prescribed in Code of Civil Procedure section 871.26. Notwithstanding Plaintiffs' failure to show good cause, as Plaintiffs have ostensibly agreed to attend initial depositions on July 7, 2026, the court will reserve ruling on GM's request for an award of monetary sanctions, and continue the motion as to that request. Further, the court will require the parties to file a joint report or, if necessary, file and serve individual reports setting forth the status of the initial depositions of Plaintiffs as ordered herein.

Judges

Judge Colleen Sterne

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